

24CHCV03626 24CHCV03626

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LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 1, 2026

MOTION FOR ORDER APPOINTING

DISCOVERY REFEREE

Los Angeles Superior Court Case # 24CHCV03626

Motion

filed: 6/5/26

Amended

Motion filed: 6/8/26

MOVING PARTY: Plaintiffs Karla Aguilar; and
Olga Marina Aguilar Jimenez (collectively, "Plaintiffs")

RESPONDING PARTY: Defendant MV

Transportation, Inc. ("Defendant")

NOTICE: OK

RELIEF

REQUESTED: An

order appointing Hon. Stephen Pfahler (Ret.) as discovery referee in this action, at the sole expense of Defendant, or, in the alternative, for costs to be split equally, initially, with the losing party on each issue that goes before the referee being responsible for referee compensation as to that issue.

TENTATIVE RULING: The unopposed

motion is granted in part. The Court appoints Hon. Stephen Pfahler (Ret.) as discovery referee for all discovery purposes, with costs to be split equally between the parties, and the losing party on each issue heard by the referee thereafter is responsible for compensation as to that issue.

BACKGROUND

This

is a personal injury action in which Plaintiffs allege that on 10/17/22, plaintiff Aguilar, a 41-year-old disabled adult, was entering a van for her scheduled for curb-to-curb transportation with Defendant's paratransit service, when her wheelchair fell backwards. (SAC ¶¶ 10–14.) Plaintiff Jimenez is Aguilar's mother and guardian ad litem. (Id. at ¶ 12.)

On

10/7/24, Plaintiffs filed the instant action against Defendant, alleging the following causes of action: (1) Negligence; (2) Negligent Hiring, Supervision, Training and/or Retention of Employee; and (3) Fraud – Concealment. On 4/14/25, Plaintiffs filed their first amended complaint ("FAC"), alleging the same causes of action. On 6/12/25, Plaintiffs filed their operative second amended complaint ("SAC"), alleging the same causes of action.

On

6/12/25, Plaintiffs amended their SAC to name Helen Carter as previously unnamed Doe defendant 1. On 9/8/25, Carter filed her answer to the SAC. On 11/21/25, Defendant filed its answer.

On 6/5/26, Plaintiffs filed

their original motion. On 6/8/26, Plaintiffs filed the instant amended motion. No opposition has been filed to date.

ANALYSIS

A party may move the Court to appoint a discovery referee

“when the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.” (Code Civ. Proc. § 639, subd. (a) (5).)

Here, Plaintiffs assert that the appointment of Hon.

Stephen Pfahler (Ret.) as discovery referee in this action is necessary because

“Defense counsel has refused to participate in the discovery process. Defense counsel is demanding the FOURTH deposition session of Plaintiff Olga Jimenez (already over 10 hours of on-record testimony), while simultaneously refusing to respond to initial written discovery. Mr. Lipman also claims to need multiple physical and mental examinations, but refuses to schedule them.”

(Pls.’ Mot. ¶ 2b(1).) Plaintiffs further assert that Defendant’s “counsel are continuously abusing written discovery. They obtain multiple extensions of time to respond, then provide only objections, then miss their own deadlines (repeatedly) to provide substantive responses. Because the Court is booked 3-6 months out for motions, they gleefully encourage Plaintiffs to choose between obtaining basic discovery and keeping their trial date. This type of gamesmanship warrants the appointment of a referee. They are abusing the system and there must be consequences.” (Id. at ¶ 4a(2).)

On 6/24/26,

Plaintiffs’ counsel filed a declaration stating that despite several efforts to meet and confer with Defendant’s counsel regarding the outstanding discovery issues, Plaintiffs’ counsel received no response. (6/24/26 Decl. of Daniel Ghyczy ¶¶ 6–12.) The Court notes that Defendant has failed to file any opposition to the instant motion. Based on the foregoing exceptional circumstances, including Defendant’s counsel’s repeated refusal to engage in discovery efforts, the Court grants Plaintiffs’ unopposed motion for an order appointing Hon. Stephen Pfahler (Ret.), ADR Services, 1900 Avenue of The Stars, Ste. 200, Los Angeles, CA 90067, (310) 201-0100, as discovery referee in this action for all discovery

purposes, at a maximum hourly rate of \$1,100.00. The Court further orders costs to be initially split equally between the parties, and the losing party on each issue heard by the referee thereafter is responsible for compensation as to that issue. All pending discovery motions are therefore

off-calendar and shall be referred to the discovery referee.

CONCLUSION

The unopposed

motion is granted in part. The Court appoints Hon. Stephen Pfahler (Ret.) as discovery referee for all discovery purposes, with costs to be split equally between the parties, and the losing party on each issue heard by the referee thereafter is responsible for compensation as to that issue.